

1 UNITED STATES DISTRICT COURT
2 SOUTHERN DISTRICT OF CALIFORNIA

3 Daniel ARAGON,
4 Plaintiff,
5 v.
6 DZR GROUP INC., et al.,
7 Defendants.

Case No.: 25-cv-0264-AGS-BLM

**ORDER DISMISSING IN PART THE
COMPLAINT (ECF 1), GRANTING
IN FORMA PAUPERIS MOTION
(ECF 2), AND GRANTING LEAVE
TO ELECTRONICALLY FILE
(ECF 3)**

8
9 Plaintiff Daniel Aragon's motion to proceed without paying the initial filing fee is
10 granted. But some of his causes of action do not state a claim for relief, so those claims
11 must be dismissed.

12 **IN FORMA PAUPERIS MOTION**

13 Typically, parties instituting a civil action in a United States district court must
14 prepay \$405 in fees, including a \$350 filing fee and a \$55 administrative fee. *See* 28 U.S.C.
15 § 1914(a); Judicial Conference Schedule of Fees, District Court Misc. Fee Schedule, § 14
16 (eff. Dec. 1, 2023). But if granted the right to proceed in forma pauperis, a plaintiff's
17 "action may proceed despite failure to pay the filing fees." *Rodriguez v. Cook*, 169 F.3d
18 1176, 1177 (9th Cir. 1999).

19 Aragon claims to have an average monthly income of \$4,150.00 and one asset: a car
20 valued at \$15,500. (ECF 2, at 1–3.) But his monthly expenses total \$5,038.00, and his only
21 bank account has a negative balance of \$171.50. (*Id.* at 2, 5.) Based on these facts, the
22 Court finds that Aragon has sufficiently shown an inability to pay the initial fees. *See*
23 *Blount v. Saul*, No. 21-cv-0679-BLM, 2021 WL 1561453, at *1 (S.D. Cal. Apr. 21, 2021)
24 ("It is well-settled that a party need not be completely destitute to proceed IFP."); *see also*
25 *Escobedo v. Applebees*, 787 F.3d 1226, 1228 (9th Cir. 2015) (granting IFP motion when
26 plaintiff and his spouse earned about \$1,250 per month with \$2,350 in monthly expenses,
27 no savings, and additional assets totaling \$256,500).

28 U.S.C. § 1915(e) SCREENING

A. Legal Standard

When reviewing an IFP motion, the court must screen the complaint and dismiss it if it “fails to state a claim.” 28 U.S.C. § 1915(e)(2)(B); *Lopez v. Smith*, 203 F.3d 1122, 1126–27 (9th Cir. 2000). “The standard for determining whether a plaintiff has failed to state a claim upon which relief can be granted under § 1915(e)(2)(B)(ii) is the same as the Federal Rule of Civil Procedure 12(b)(6) standard for failure to state a claim.” *Watison v. Carter*, 668 F.3d 1108, 1112 (9th Cir. 2012). Rule 12(b)(6) requires a complaint “contain sufficient factual matter, accepted as true, to state a claim to relief that is plausible on its face.” *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009) (cleaned up).

B. Aragon’s Allegations

Aragon alleges that the defendants here—a business that goes by multiple names and its owners—“regularly operate as third-party debt collectors.” (ECF 1, at 3.) In January 2018, defendants “began calling” Aragon “in an attempt to collect a consumer debt” he “allegedly owed.” (*Id.*) “Defendants left a voicemail” that said:

Do not hang up. This is not a sale solicitation. This is Riley Dugan and I’m contacting you from the Legal Department of Omni Mediation Group. Our office is responsible for handling pre-legal processing and returned checks to our client. Due to the laws in your state regarding bad or hot checks, it’s imperative we speak to you or the correct party as soon as possible. Please press one to speak with a live representative now or contact us immediately.

(*Id.* at 3–4.)

Defendants left another voicemail in March 2018 that said substantially the same thing, except the call was purportedly from “Omni Mediation Group and Law Offices of Mary Claire.” (ECF 1, at 4.) Aragon alleges that “there is no ‘Law Offices of Mary Claire’ and no attorney identified as ‘Mary Claire’ was involved.” (*Id.*)

Between 2018 and 2022, Aragon sent defendants two letters requesting that defendants “cease all contact” with him and “his associates and family.” (ECF 1, at 5.)

1 Despite these letters, Aragon “has been contacted by defendants at least” 33 times “with
2 generally the same message and different pretexted phone numbers.” (*Id.*)

3 **C. Discussion**

4 Aragon brings claims under the Fair Debt Collections Practices Act, 15 U.S.C.
5 §§ 1692–1692p; the California Rosenthal Fair Debt Collections Practices Act, Cal. Civ.
6 Code §§ 1788–1788.33; and the Telephone Consumer Protection Act, 47 U.S.C. § 227.
7 (*See generally* ECF 1.)

8 **1. Fair Debt Collections Practices Act**

9 The Fair Debt Collections Practices Act “prohibits debt collectors from making false
10 or misleading representations and from engaging in various abusive and unfair practices.”
11 *Donohue v. Quick Collect, Inc.*, 592 F.3d 1027, 1030 (9th Cir. 2010) (quotation marks
12 omitted). “In order for a plaintiff to recover under the FDCPA, there are three threshold
13 requirements: (1) the plaintiff must be a ‘consumer’; (2) the defendant must be a ‘debt
14 collector’; and (3) the defendant must have committed some act or omission in violation
15 of the” statute. *Robinson v. Managed Accts. Receivables*, 654 F. Supp. 2d 1051, 1057 (C.D.
16 Cal. 2009). Aragon says he “allegedly owe[s]” a consumer debt and that defendants
17 “regularly operate as third-party debt collectors,” satisfying the first two prongs. (ECF 1,
18 at 3); *see* 15 U.S.C. § 1692a(3), (6) (defining “consumer” as any person “allegedly
19 obligated to pay any debt” and “debt collector” as one “who regularly collects,” directly or
20 indirectly,” “debts owed or due”).

21 As for the third prong, Aragon alleges several acts or omissions that violate the
22 FDCPA, as discussed below. Conduct under the FDCPA is judged by the
23 least-sophisticated-debtor standard: “If the least sophisticated debtor would likely be
24 misled by a communication from a debt collector, the debt collector has violated the Act.”
25 *Guerrero v. RJM Acquisitions LLC*, 499 F.3d 926, 934 (9th Cir. 2007).

26 **a. Meaningful Disclosure**

27 As to claim 1, Aragon alleges a failure to make a meaningful disclosure. (ECF 1,
28 at 8.) “A debt collector may not engage in any conduct the natural consequence of which

1 is to harass, oppress, or abuse any person in connection with the collection of a debt,”
2 including “the placement of telephone calls without meaningful disclosure of the caller’s
3 identity.” 15 U.S.C. § 1692d(6). A “meaningful disclosure” “requir[es] that the caller state
4 his or her name and capacity, and disclose enough information so as not to mislead the
5 recipient as to the purpose of the call.” *Costa v. Nat’l Action Fin. Servs.*, 634 F. Supp. 2d
6 1069, 1074 (E.D. Cal. 2007).

7 Here, the caller stated his or her name, that the caller was calling on behalf of “Omni
8 Mediation Group,” and that the group was “responsible for handling pre-legal processing
9 and returned checks.” (ECF 1, at 3–4.) “[T]he caller failed,” however, “to disclose he or
10 she was calling on behalf of a collection agency,” and failed “to divulge the true nature and
11 purpose of the call—that is, to collect a debt owed by” Aragon. *See Costa*, 634 F. Supp. 2d
12 at 1075. Thus, Aragon has adequately alleged that defendants “violated § 1692d(6) when
13 [they] failed to disclose [their] identity as a debt collector and the nature of the call.” *See*
14 *id.*; *see also Hosseinzadeh v. M.R.S. Assocs.*, 387 F. Supp. 2d 1104, 1112 (C.D. Cal. 2005)
15 (“The Court concludes that defendant violated § 1692d(6) when its employees failed to
16 disclose defendant’s identity and the nature of defendant’s [debt-collecting] business.”); *cf.*
17 *Hart v. Credit Control, LLC*, 871 F.3d 1255, 1260 (11th Cir. 2017) (“Because the
18 individual callers here disclosed that they were calling on behalf of” “a debt collection
19 company,” plaintiff “was provided with meaningful disclosure, and thus no violation of
20 § 1629d(6) occurred.”).

21 b. *Nature of the Call*

22 In claim 2, Aragon charges defendants with failing to disclose the nature of the calls.
23 (ECF 1, at 9.) The FDCPA requires a debt collector to disclose in an “initial oral
24 communication” “that the debt collector is attempting to collect a debt and that any
25 information obtained will be used for that purpose.” 15 U.S.C § 1692e(11). Since
26 defendants did not disclose that they were a debt collector in their initial message, this
27 claim also survives screening. *See Costa*, 634 F. Supp. 2d at 1076 (“In the present case, it
28 is undisputed the messages left on plaintiff’s voice mail did not disclose the caller’s identity

1 (beyond stating her name as Elizabeth) or the nature of the call. Thus, defendant violated
2 § 1692e(11) because the messages left for plaintiff did not convey the required
3 information.” (citations omitted)).

4 c. *Continuing Collection Without Validation*

5 Claims 3 and 8 both allege that the defendants continued to collect debt without
6 validation. (ECF 9, 12.) “Within five days after the initial communication with a consumer
7 in connection with the collection of any debt, a debt collector shall . . . send the consumer
8 a written notice containing” certain information pertaining to the debt. 15 U.S.C.
9 § 1692g(a). This written notice is referred to as a “validation notice.” *Riggs v. Prober &*
10 *Raphael*, 681 F.3d 1097, 1099 (9th Cir. 2012). In claim 3, Aragon alleges that defendants
11 “fail[ed] to send Plaintiff the requisite debt validation information within” 5 days “of their
12 initial communication.” (ECF 1, at 9.) So, this initial validation-notice claim survives
13 screening.

14 In claim 8, Aragon also contends that defendants violated this section because they
15 “did not validate the alleged debt when lawful written request was made” to the defendants.
16 (ECF 1, at 12.) “If the consumer notifies the debt collector in writing within” 30 days of
17 the initial communication “that the debt, or any portion thereof, is disputed, or that the
18 consumer requests the name and address of the original creditor,” the debt collector must
19 verify the debt. 15 U.S.C. § 1692g(b). But Aragon’s letters to defendants only requested
20 that they “cease all contact” with Aragon and with “his associates and family.” (ECF 1,
21 at 5; *see also id.* (describing a second letter asking defendants “to cease and desist contact
22 in the same manner that was asked in the previous letter”).) Aragon does not allege that he
23 notified defendants in writing that his debt was disputed, nor that he requested a name or
24 address in writing within 30 days after the first call. So Aragon’s second validation-notice
25 claim (claim 8) is dismissed. *See McMillan v. Bank of Am., N.A.*, No. 14CV1575-MMA
26 BLM, 2015 WL 1942743, at *13 (S.D. Cal. Apr. 15, 2015) (dismissing because “Plaintiffs
27 fail to allege that notification of the dispute was made in writing, or within the thirty-day
28 period after receipt of the initial communication”).

1 d. *Misrepresentation*

2 In claim 4, Aragon alleges misrepresentation. (ECF 1, at 9.) “A debt collector may
3 not use any false, deceptive, or misleading representation or means in connection with the
4 collection of any debt.” 15 U.S.C. § 1692e. This includes the “false representation or
5 implication that any individual is an attorney or that any communication is from an
6 attorney.” *Id.* § 1692e(3). Aragon says that the caller represented being from the “Law
7 Offices of Mary Claire,” but such an office doesn’t exist and “no attorney identified as
8 ‘Mary Claire’ was involved.” (ECF 1, at 4.) Based on this representation, the “least
9 sophisticated debtor” would certainly believe that “Mary Claire” is an attorney. And if, as
10 Aragon alleges, Mary Claire does not exist or is not an attorney, then such a
11 representation is false. So Aragon’s misrepresentation claim may proceed.

12 e. *Harassment*

13 Finally, in claim 10 Aragon brings a general “harassment” cause of action. (ECF 1,
14 at 13.) Aragon alleges that defendants violated the FDCPA “by ignoring the cease and
15 desist letter” and “continuing their harassment” or Aragon. (ECF 1, at 13.) “[A] debt
16 collector may harass a debtor” in violation of the FDCPA “by continuing to call the debtor
17 after the debtor has requested that the debt collector cease and desist communication.”
18 *Johnson v. Portfolio Recovery Assocs.*, No. CV 12 - 4261 PSG, 2013 WL 10156241, at *7
19 (C.D. Cal. June 24, 2013); 15 U.S.C. § 1692d (“A debt collector may not engage in any
20 conduct the natural consequence of which is to harass, oppress, or abuse any person in
21 connection with the collection of a debt.”). Aragon sufficiently pleads harassment under
22 the FDCPA.

23 **2. *Rosenthal Act***

24 Aragon sues under California’s Fair Debt Collection Practices Act, or Rosenthal Act,
25 including causes of action for misrepresentation (claim 6), failure to validate debt following
26 written request (claim 7), and harassment (claim 10). California’s law “mimics or
27 incorporates by reference the FDCPA’s requirements” and “makes available the FDCPA’s
28 remedies for violations.” *Riggs*, 681 F.3d at 1100; *see also* Cal. Civ. Code § 1788.17

1 (“Notwithstanding any other provision of this title, every debt collector collecting or
2 attempting to collect a consumer debt shall comply with the provisions of [the FDCPA],
3 inclusive, of, and shall be subject to the [FDCPA] remedies[.]”). So whether an act violates
4 California law “turns on whether it violates the FDCPA.” *Riggs*, 681 F.3d at 1100. Thus,
5 for the reasons stated above, all of Aragon’s California claims survive except for the debt-
6 verification claim (claim 7). *See* Cal. Civ. Code § 1788.52(c) (“A debt buyer shall provide”
7 debt-verification information “within 15 calendar days of receipt of a debtor’s written
8 request for information regarding the debt or proof of the debt.”).

9 **3. Telephone Consumer Protection Act**

10 Finally, Aragon claims defendants violated the Telephone Consumer Protection Act
11 by using “an artificial or prerecorded voice to deliver a message without” consent (claim 5)
12 and by “transmit[ing] misleading or inaccurate caller identification information with the
13 intent to defraud, cause harm, or wrongfully obtain anything of value” (claim 9). (ECF 1,
14 at 10, 12.) As to the former, Aragon adequately pleads that defendants used an artificial or
15 prerecorded voice as evidenced by the message’s instruction to “press one to speak with a
16 live representative.” (ECF 1, at 4); *see also Davis v. Rockloans Marketplace, LLC*, No.
17 23-2593, 2024 WL 4345293, at *1 (9th Cir. Sept. 30, 2024) (“[A] plaintiff may state a
18 TCPA claim by alleging the use of an artificial or prerecorded voice.”). As for the latter,
19 Aragon says that defendants “use either anonymous phone numbers or they use phone
20 numbers that either do not belong to them or do belong to them but are spoofed” “to show
21 a different area code from that of the defendants” to “defraud” him. (ECF 1, at 5–6, 10.)
22 This is enough to survive at this stage. *See United States v. Rhodes*, No. CV 21-110-M-
23 DLC-KLD, 2022 WL 2466796, at *7 (D. Mont. Apr. 1, 2022) (finding the plaintiff “alleged
24 facts demonstrating that [defendant] knowingly caused a caller identification service to
25 transmit misleading or inaccurate caller ID information” when the defendant used “caller
26 IDs that matched the area code of the call’s recipient rather than his own”), *report and*
27 *recommendation adopted*, No. CV 21-110-M-DLC, 2022 WL 17484847 (D. Mont. Dec. 7,
28 2022).

1 **CONCLUSION**

2 Aragon's motion to proceed in forma pauperis is **GRANTED**. Aragon's
3 debt-verification causes of action (claims 7 and 8) are **DISMISSED with leave to amend**.
4 *See Rosati v. Igbinoso*, 791 F.3d 1037, 1039 (9th Cir. 2015) ("A district court should not
5 dismiss a pro se complaint without leave to amend unless it is absolutely clear that the
6 deficiencies of the complaint could not be cured by amendment." (quotation marks
7 omitted)). All other claims survive screening. Any amended complaint must be filed by
8 **May 8, 2025**.

9 Since Aragon represents that he has the proper equipment to file electronically, and
10 that he agrees to follow all rules and policies in the CM/ECF Administrative Policies and
11 Procedures Manual (*see* ECF 3), the motion for leave to file electronically is **GRANTED**.

12 Dated: April 10, 2025

13 
14 Hon. Andrew G. Schopler
15 United States District Judge
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